

24NWCV02540 24NWCV02540

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Case Number: 24NWCV02540 Hearing Date: September 15, 2026 Dept: P

TONYA RENITA FORD v. ALLINGHAM

COURT HOMEOWNERS ASSOCIATION

CASE NO.: 24NWCV02540

HEARING: 09/15/2026 @

10:30 AM

#14

TENTATIVE ORDER

Plaintiff Tonya Renita Ford's motion to compel further responses to form interrogatories, set one from Defendant Allingham Court Homeowners Association is DENIED.

Moving party to give notice.

Plaintiff Tonya Renita Ford (Plaintiff) moves to compel Defendant Allingham Court Homeowners Association (Defendant) to provide further responses to form interrogatories (FROGs), set one.

Background

On August 13, 2024, Plaintiff filed this personal injury action against Defendant and Does 1 to 50. The complaint alleges that Defendant and Does 1 through 50 owned and operated the premises located at 13900 Studebaker Rd, Norwalk, CA 90650 (Premises). (Complaint, ¶ 5.) On August 16,

2022, as an invitee on the Premises, "Plaintiff...was injured when a mirror fell on Plaintiff causing the mirror to shatter all over Plaintiff's body as a result of a dangerous and/or unsafe condition located on said [Premises]." (Complaint, ¶ 10.) The complaint asserts a cause of action for negligence/premises liability.

On January 27, 2026, the Court granted in part and denied in part Plaintiff's motion to compel Defendant to provide further responses to requests for admission (RFAs), set one.

Legal Standard

Under Code of Civil Procedure section 2030.300, subdivision (a), "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general."

"As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) "While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Ibid.)

Meet and Confer

The motion to compel further discovery shall

be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel indicates that Plaintiff raised certain deficiencies to defense counsel via email but Defendant refused to provide a further response. (Lopez Decl., ¶ 6.) While exchanging emails is not sufficient under the Code, the Court will proceed to rule on this motion in the interest of judicial economy and because this defect is not raised by Defendant in opposition.

Timeliness

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." (Code Civ. Proc., § 2030.300, subd. (c).) The time to make a response is extended by two court days for electronic service. (Code Civ. Proc., § 1010.6., subd. (a)(3)(B).) The 45-day deadline after responses is "mandatory and jurisdictional." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1409, citing Vidal Sassoon, Inc. v. Superior Court (1983) 147 Cal.App.3d 681, 685.)

Defendant argues this motion is untimely. Plaintiff propounded FROGs, set one, on December 17, 2025 and Defendant served responses on February 13, 2026. (Lopez Decl., ¶ 3.) Defendant explains that it granted an extension of the deadline for two weeks after the IDC. (Chavez Decl., ¶ 11.) Defendant states that the deadline for the Court to decide on the IDC was March 30, 2026, making the deadline to file this motion April 13, 2026, and the deadline to hold the IDC was April 9, 2026, making the latest deadline to file this motion, April 23, 2026. (Chavez Decl., ¶¶ 12-13.) This motion was filed on April 30, 2026.

In reply, Plaintiff notes that Defendant granted the extension to "to 2-weeks after the IDC goes forward." (Lopez Dec., Exh. A.) Plaintiff argues that because the IDC was not scheduled and did not go forward, then the deadline had not manifested.

Here, the Court agrees with Defendant that the latest days the Court could have approved the IDC or held the IDC serve as appropriate deadlines. The parties were aware by March 30, 2026, that the IDC would not go forward. Moreover, an IDC was held on March 27, 2026. It is not reasonable for Plaintiff to assume that the deadline to file this motion would extend indefinitely once it was aware that no IDC would take place. Once Plaintiff was aware on April 23, 2026, the deadline for the IDC to go forward, that an IDC was not going to go forward, Plaintiff could have sought another extension. Therefore, the Court finds this motion untimely.

Accordingly, Plaintiff's motion to compel further responses to form interrogatories, set one is DENIED.

The Court does not grant either side's request for monetary sanctions as the confusion regarding this deadline may have been resolved informally through a good faith meet and confer process.